



## CHAPTER cxxvi.

An Act to confirm a Provisional Order made by the Board of Education under the Education Acts 1870 to 1911 to enable the London County Council to put in force the Lands Clauses Acts.      A.D. 1914.  
[31st July 1914.]

**W**HEREAS the Board of Education have made a Provisional Order under the authority of the Education Acts 1870 to 1911 on behalf of the London County Council (hereinafter called "the Council") and it is requisite that the same should be confirmed by Parliament:

And whereas the lands required to be purchased under the powers granted by the said Provisional Order and confirmed by this Act are severally described in the schedule to the said Provisional Order as set out in Part III. of the schedule to this Act and are delineated on the plans accompanying the petition referred to in the said Provisional Order and copies of the said plans have been duly deposited in the offices of the two Houses of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The following Order as amended and set out in Part III. of the schedule to this Act shall be and is hereby confirmed and from and after the passing of this Act shall have full validity and force.      Confirmation of Order in schedule.

2. Save as otherwise expressly provided nothing herein contained shall be construed to authorise the Council to extinguish public rights of way.  
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*Order Confirmation (London) Act, 1914.*

A.D. 1914. — any public rights of way without such order being obtained as but for this Act would have been required for that purpose.

Council may appropriate &c. for street widenings portions of land acquired.

3. In the case of any lands which the Council are by this Act authorised to acquire and which abut upon streets or roads which are not in the opinion of the Council sufficiently wide for the accommodation of the present and probable future traffic or for the convenience of the persons using the said streets or roads it shall be lawful for the Council to appropriate take and use for the purpose of widening any such streets or roads so much of the said lands as the Council may determine to be necessary for such purpose. Provided that if the Council appropriate take or use any part of the said lands for the purpose of widening any street or road such part of the cost of the acquisition thereof and of any expenses incidental to such acquisition as the Council may determine shall be deemed to be part of the costs and expenses of the Council in connexion with street improvements.

No compensation to be paid for improvements &c. made since 1st August 1913.

4. In settling any question of disputed purchase money or compensation payable under this Act by the Council the jury arbitrators or other authority settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the first day of August one thousand nine hundred and thirteen if in the opinion of such jury arbitrators or other authority the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view of obtaining or increasing compensation under this Act.

Owners may be required to sell parts only of certain lands and buildings.

5. Notwithstanding section ninety-two of the Lands Clauses Consolidation Act 1845 the owners of and other persons interested in the houses or other buildings or manufactories shown on the deposited plans and distinguished thereon by the numbers specified in Part I. of the schedule to this Act and whereof parts only are required for the purposes of this Act may if such parts can in the opinion of the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such premises without material detriment thereto be required to sell and convey to the Council the parts only of the premises so required without



the Council being obliged or compellable to purchase the whole or any greater part thereof. A.D. 1914.

6. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

7. The jury arbitrators or other authority to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Council award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Council by the claimant giving sufficient particulars and in sufficient time to enable the Council to make a proper offer and if the jury arbitrators or other authority shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Council have been prejudiced thereby the jury arbitrators or other authority shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant. Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Council to amend the statement in writing of the claim delivered by him to the Council in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Council if they object to the amendment and such amendment shall be subject to such terms enabling the Council to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case. Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Acts either contained or was endorsed with a notice of the effect of this section.

Costs of arbitration &c. in certain cases.



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*Order Confirmation (London) Act, 1914.*

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Exemption  
from s. 133 of  
Lands Clauses  
Act 1845.

8. Section one hundred and thirty-three of the Lands Clauses Consolidation Act 1845 (relating to land tax and poor rate) shall not apply in the case of any lands of which the Council become possessed by virtue of this Act.

Tenancies  
having not  
longer than  
18 months  
to run.

9. Notwithstanding anything contained in the Lands Clauses Acts any claim for compensation under this Act by any person having or in respect of any interest in the lands in respect of which compensation is claimed not greater than that of a lessee or tenant for any term of which not more than eighteen months remain unexpired at the time when the claim is made shall be determined by justices in the manner provided by section one hundred and twenty-one of the Lands Clauses Consolidation Act 1845.

Power to  
Council to  
stop up cer-  
tain streets.

10.—(1) The Council may stop up the public streets shown on the deposited plans and distinguished thereon by the numbers specified in Part II. of the schedule to this Act or any parts of such streets and thereupon all public rights of way over such streets or parts thereof (in this section herein-after referred to as "the streets") shall be extinguished and the Council may appropriate and use the streets for the purposes of Part III. of the Education Act 1902.

(2) The Council may cause to be removed arched over or filled up all such sewers or drains or parts thereof which shall be in or near the streets as shall appear necessary for executing the purposes of this section so that no public sewer or drain (unless the same become unnecessary by reason of the purchase of the property entitled to the use thereof) shall be in anywise disturbed injured or prejudiced without another sewer or drain being made in lieu thereof equally serviceable and convenient Provided that before removing or filling up any sewer or drain or part thereof as aforesaid the Council shall (where necessary) cause to be made and built other good and sufficient sewers and drains in substitution for the sewers or drains which shall be filled up and when made and completed the said sewers and drains shall be under the same jurisdiction care management and direction as the existing sewers or drains.

(3) The Council may in any of the streets raise sink or otherwise alter the position of any watercourse and any main pipe or apparatus laid down or used for carrying a supply of water or water for hydraulic power or gas and also any pipe tube



wire or apparatus laid down or placed for supplying electricity or for telegraphic or other purposes and may remove any other obstruction making proper substituted works during any alteration and causing as little detriment and inconvenience as circumstances admit and making reasonable compensation for any damage caused by any such alteration. Provided that before the Council alter the position of any main pipe or apparatus laid down or used as aforesaid they shall (except in cases of emergency) give to the company body or person (in this section herein-after referred to as "the undertakers") to whom the same belongs notice of their intention to do so specifying the time at which they will begin to do so such notice to be given seven days at least before the commencement of the work for effecting such alteration and such work shall be done under the superintendence (at the expense of the Council) of the undertakers to whom such main pipe or apparatus belongs unless such undertakers refuse or neglect to give such superintendence at the time specified in the notice for the commencement of such work or discontinue the same during the execution of such work and the Council shall execute such work to the reasonable satisfaction of such undertakers. Provided also that the Council shall not cause any of the streets to be lowered or raised nor the position of any water or gas main or other pipe to be altered so as to leave over such main or pipe in any part a covering of less than two feet where the covering now existing is not less than two feet unless the Council shall in such case protect such main or pipe from frost or injury by artificial covering to the satisfaction of the undertakers to whom the same belongs or more than six feet where the covering now existing does not exceed six feet or more than such existing covering where the same exceeds six feet unless the Council in such case provide special means of access to the same to the satisfaction of such undertakers.

(4) If within seven days after a notice under subsection (3) of this section shall have been served upon any undertakers those undertakers so elect they shall themselves execute all such alterations to their mains and pipes as may from time to time be necessary for the purposes of this Act and the reasonable costs of executing such alterations shall be repaid to them by the Council. Provided that such alterations shall be carried out in accordance with the directions and to the reasonable satisfaction of the Council.



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(5) If any difference arise between the Council and any such undertakers touching the amount of any costs or expenses under the foregoing provisions of this section to be paid by the Council to any such undertakers or touching any work matter or thing with reference to such mains or other pipes under such provisions to be done or executed by the Council or the mode of doing or executing the same such difference shall be settled by an engineer to be agreed upon by the Council and the undertakers or failing agreement by such engineer as shall on the application either of the Council or of such undertakers be named by the President of the Institution of Civil Engineers.

(6) The powers conferred upon the Council by this section shall not be exercised in regard to the streets until the Council are owners in possession of all lands and premises having access thereto and immediately abutting thereupon except so far as the owners lessees and occupiers of such lands and premises may otherwise agree.

(7) Nothing in this section shall extend to authorise the Council to raise sink or otherwise alter the position of any pipe tube wire or apparatus laid down or placed for telegraphic or other purposes and belonging to the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

(8) Nothing in this section shall extend to prejudice or affect any of the provisions for the protection of any undertakers authorised to supply electrical energy contained in any special Act or any Provisional Order confirmed by Act of Parliament.

Short title.

**11.** This Act may be cited as the Education Board Provisional Order Confirmation (London) Act 1914.



## SCHEDULE.

A.D. 1914.

### PART I.

#### PARTS OF PREMISES WHICH MAY BE ACQUIRED COMPULSORILY BY THE COUNCIL.

| Metropolitan Borough. | Plan Number. | Distinguishing<br>Number on Plan. |
|-----------------------|--------------|-----------------------------------|
| Fulham - - - - -      | 8            | 10                                |

### PART II.

#### THE PUBLIC STREETS WHICH MAY BE STOPPED UP BY THE COUNCIL.

| Metropolitan Borough. | Plan<br>Number. | Name of Street.     | Distinguishing<br>Number on<br>Plan. |
|-----------------------|-----------------|---------------------|--------------------------------------|
| Bethnal Green - -     | 3               | Marian Square - -   | 2                                    |
| Deptford - - -        | 6               | Stanhope Street - - | 8                                    |
| Fulham - - -          | 8               | Chestnut Alley - -  | 9                                    |
| Fulham - - -          | 8               | Goodson Road - -    | 11                                   |
| Kensington - -        | 14              | Angola Mews - -     | 24                                   |
| Stepney - - -         | 21              | Turner's Place - -  | 3                                    |



A.D. 1914.

*London  
County  
Council.*

PART III.

EDUCATION ACTS 1870-1911

AND

BOARD OF EDUCATION ACT 1899.

THE LONDON COUNTY COUNCIL.

*Provisional Order for putting in force the Lands  
Clauses Acts.*

WHEREAS the London County Council require to purchase divers pieces of land for the purposes of Part III. of the Education Act 1902 and not having been able to purchase the same by agreement require to put in force the provisions of the Lands Clauses Acts which apply to the purchase and taking of lands otherwise than by agreement:

And whereas the lands so required to be purchased are set forth in the schedule hereto:

And whereas the London County Council have made due publication of the notices and have duly served the same according to the requirements of the Education Acts 1870-1911 and have presented a petition to the Board of Education praying that an Order may be made authorising the said Council to put in force the powers of the said Acts with respect to the purchase and taking of lands otherwise than by agreement in which petition were stated all the matters required by the said Education Acts to be stated therein and the same hath been supported by such evidence as the Board of Education required:

And whereas the Board of Education having considered the said petition and the proofs of the publication and service of the proper notices have thought fit to proceed with the case and have caused inquiries to be made in the districts wherein the said lands are situate as to the propriety of the proposed Order:

And whereas so far as under subsection (2) of section 2 of the Education (London) Act 1903 the concurrence of the Council of any Metropolitan Borough is required to any compulsory acquisition authorised by this Order that Council concur in that proposed compulsory acquisition or where they do not concur the Board of Education are satisfied that their concurrence should be dispensed with:

And whereas the Board of Education have received reports after the inquiries above mentioned and having duly considered the same are satisfied of the propriety of the proposed Order:



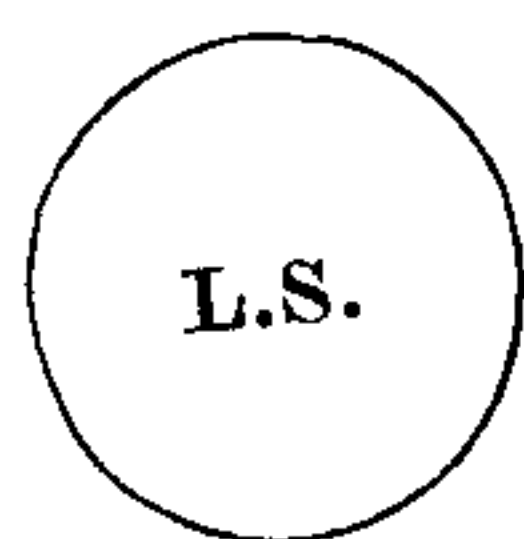
[4 & 5 GEO. 5.]      *Education Board Provisional*      [Ch. cxxvi.]  
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Now therefore the Board of Education do hereby order that the London County Council be authorised to put in force with reference to the lands set forth in the schedule hereto the powers of the said Acts (except the provisions relating to access to the special Act) for the purchase and taking of lands otherwise than by agreement or any of them.

A.D. 1914.

*London  
County  
Council.*

Given under the seal of office of the Board of Education this  
24th day of April one thousand nine hundred and fourteen.



H. J. SIMMONDS

One of the Assistant Secretaries of  
the Board of Education.

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The SCHEDULE herein-before referred to.

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Plan No. 1.

METROPOLITAN BOROUGH OF BERMONDSEY AND DEPTFORD.

Land house and premises known as Chapel Cottage together with so much of the passage known as Midway Place adjoining the said cottage as abuts upon the Baptist Chapel and upon the premises known as Nos. 1 and 2 Midway Place containing 4,610 square feet or thereabouts as the same are shown on the Plan No. 1 and distinguished thereon by the Nos. 1 and 2 in each borough.

Plan No. 3.

METROPOLITAN BOROUGH OF BETHNAL GREEN.

Land houses and premises known as Nos. 37 38 and 39 Marian Square and Nos. 62 64 66 and 68 Pritchard's Road and the thoroughfare known as Marian Square except so much thereof as abuts on No. 68 Pritchard's Road containing 13,175 square feet or thereabouts as the same are shown on the Plan No. 3 and distinguished thereon by the Nos. 2 to 9 inclusive.



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Plan No. 5.

METROPOLITAN BOROUGH OF CAMBERWELL.

Land houses and premises known as Nos. 13 to 16 (inclusive) Rill Street and Nos. 138 to 144 (even numbers inclusive) Southampton Street containing 5,640 square feet or thereabouts as the same are shown on the Plan No. 5 and distinguished thereon by the Nos. 1 to 8 inclusive.

Plan No. 6.

METROPOLITAN BOROUGH OF DEPTFORD.

Land houses and premises known as Nos. 44 to 56 (even numbers inclusive) Stanhope Street Nos. 44 to 56 (even numbers inclusive) Hales Street together with so much of Stanhope Street as extends from No. 20 to No. 56 Stanhope Street containing 13,700 square feet or thereabouts as the same are shown on the Plan No. 6 and distinguished thereon by the Nos. 1 to 15 inclusive.

Plan No. 8.

METROPOLITAN BOROUGH OF FULHAM.

Land houses and premises known as Nos. 1 to 13 (odd numbers) and 2 to 20 (even numbers inclusive) Goodson Road and Nos. 33 and 35 Jervis Road together with the highway known as Goodson Road and so much of Chestnut Alley as lies between No. 13 Goodson Road and the playground of the Council's School in North End Road together also with a rectangular piece of land bounded on the north by Crown Court on the east by the Crown public-house on the south by premises forming part of the said school and on the west by Chestnut Alley aforesaid containing 35,770 square feet or thereabouts as the same are shown on the Plan No. 8 and distinguished thereon by the Nos. 1 to 22 inclusive.

Plan No. 11.

METROPOLITAN BOROUGH OF ISLINGTON.

Land houses and premises known as Nos. 5 to 23 (odd numbers inclusive) Victoria Road Nos. 58 and 58A Chalfont Road and Nos. 125 to 141 (odd numbers inclusive) St. James's Road containing 37,750 square feet or thereabouts as the same are shown on the Plan No. 11 and distinguished thereon by the Nos. 1 to 21 inclusive.



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Plan No. 12.

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METROPOLITAN BOROUGH OF ISLINGTON.

*London  
County  
Council.*

Land houses and premises known as Nos. 17 to 31 (odd numbers inclusive) Hanley Road and Nos. 10 to 26 (even numbers inclusive) Grenville Road containing 54,740 square feet or thereabouts as the same are shown on the Plan No. 12 and distinguished thereon by the Nos. 1 to 17 inclusive.

Plan No. 14.

ROYAL BOROUGH OF KENSINGTON.

Land houses and premises known as Nos. 54 to 86 (even numbers inclusive) Bevington Road Nos. 1 to 12 (inclusive) Angola Mews and Nos. 52 to 82 (even numbers inclusive) Swinbrook Road together with the yard known as Angola Mews containing 50,800 square feet or thereabouts as the same are shown on the Plan No. 14 and distinguished thereon by the Nos. 1 to 45 inclusive.

Plan No. 15.

METROPOLITAN BOROUGH OF POPLAR.

Land houses and premises known as Nos. 28 and 30 Bow Road and Nos. 2 and 2A Wellington Road containing 70,795 square feet or thereabouts as the same are shown on the Plan No. 15 and distinguished thereon by the Nos. 1 2 and 3.

Plan No. 16.

METROPOLITAN BOROUGH OF ST. MARYLEBONE.

Land houses and premises known as Nos. 9 to 12 (inclusive) Bell Street and Nos. 18 to 22 (inclusive) Manning Place containing 10,560 square feet or thereabouts as the same are shown on the Plan No. 16 and distinguished thereon by the Nos. 1 to 9 inclusive.

Plan No. 17.

METROPOLITAN BOROUGH OF ST. PANCRAS.

Land houses and premises known as Nos. 57 to 65 (inclusive) Barclay Street containing 8,200 square feet or thereabouts as the same are shown on the Plan No. 17 and distinguished thereon by the Nos. 1 to 9 inclusive.



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Plan No. 20.

METROPOLITAN BOROUGH OF SHOREDITCH.

Land houses and premises known as Nos. 16 to 32 (even numbers inclusive) Ilva Place together with the land and premises at the rear of the first named premises together also with the roadway separating the last named land and premises from the premises on the north side thereof known as Norman's Buildings and communicating with the street known as Ilva Place containing 11,445 square feet or thereabouts as the same are shown on the Plan No. 20 and distinguished thereon by the Nos. 1 to 13 inclusive.

Plan No. 21.

METROPOLITAN BOROUGH OF STEPNEY.

Land houses and premises known as Nos. 52 54 and 56 Northey Street together with the blacksmith's shop and cottage numbered 1 and 2 respectively Turner's Place together also with the alley or approach known as Turner's Place containing 3,070 square feet or thereabouts as the same are shown on the Plan No. 21 and distinguished thereon by the Nos. 1 to 6 inclusive.

Plan No. 23.

METROPOLITAN BOROUGH OF STOKE NEWINGTON.

Land houses and premises known as Nos. 76 to 96 (even numbers inclusive) Albion Road containing 53,080 square feet or thereabouts as the same are shown on the Plan No. 23 and distinguished thereon by the Nos. 1 to 11 inclusive.

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Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

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